

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC051463: AARON HIGHSMITH, et al. vs GENERAL MOTORS, LLC
09/02/2026 in Department 44
Motion for Sanctions and Compliance

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion for Compliance and Sanctions (*Opposed*)

Tentative Ruling:

Plaintiffs Aaron Highsmith and Marine Highsmith’s Motion for Compliance and Sanctions is GRANTED in part and DENIED in part.

The motion is GRANTED as to Code of Civil Procedure section 871.26, subdivisions (h)(12) and (h)(15), to the limited extent any responsive material remains withheld or redacted solely on confidentiality grounds. Within 10 calendar days, Defendant General Motors, LLC shall produce, without confidentiality-based redactions, any portions of the warranty policies and procedure manuals required by subdivision (h)(12) and any portions of the written Lemon Law restitution or replacement evaluation policies required by subdivision (h)(15) that have not previously been produced. No duplicative production is required, and GM need not produce material that falls outside those statutory categories.

The motion is DENIED as moot to the extent GM’s February 4, 2026, supplemental production already provided the required materials in full.

To the extent the motion seeks relief under Code of Civil Procedure section 871.26, subdivisions (h)(5), (11), (14), or (16), the motion is DENIED without prejudice for lack of a sufficient showing on the present record.

Pursuant to Code of Civil Procedure section 871.26, subdivision (j)(1), monetary sanctions of \$2,500 are imposed against defense attorney Ryan Kay and shall be paid to Plaintiffs' counsel within 15 business days.

Plaintiffs' request for evidentiary sanctions under Code of Civil Procedure section 871.26, subdivision (j)(4), is DENIED without prejudice.

Plaintiffs to give notice.

I. Background

A. Factual Background

Plaintiffs Aaron Highsmith and Marine Highsmith ("Plaintiffs") allege that, on January 11, 2024, they purchased a 2024 GMC Yukon, VIN 1GKS2DKL1RR136264, for personal, family, or household purposes. (Compl., ¶ 5.) "Plaintiffs allege that Defendant General Motors, LLC ("GM") provided written express warranties, including a three-year/36,000-mile basic warranty and a five-year/100,000-mile powertrain warranty. (Compl., ¶ 7.)

Plaintiffs allege that they attempted to present the vehicle to GM-authorized service facilities, but appointments were canceled or refused. (Compl., ¶ 9.) In particular, Plaintiffs allege that they sought repair of the N252494000 defect, which could cause the vehicle to crash without warning, but GM-authorized representatives canceled or refused appointments because parts or a remedy were unavailable. (Compl., ¶ 10.)

The Complaint further alleges that Plaintiffs complied with the procedures in Code of Civil Procedure sections 871.20 through 871.30 and that GM accepted the vehicle for repurchase but failed to provide an itemized offer within the statutory period despite receiving the requested documentation and information. (Compl., ¶ 14.) The asserted presuit repurchase process is relevant to the disclosure obligation under section 871.26, subdivision (h)(15).

B. Procedural Background

Plaintiffs filed the Complaint on September 23, 2025. GM filed its Answer on November 5, 2025.

The parties proceed on the premise that Code of Civil Procedure section 871.26 applies to this action, and GM does not dispute applicability of the statutory disclosure procedure.

On November 10, 2025, Plaintiffs sent GM a letter specifically addressing the documents required by Code of Civil Procedure section 871.26, subdivisions (h)(12) and (h)(15). Plaintiffs

disputed GM's position that those materials required a stipulated protective order and stated that they expected timely production. (Lara Decl., ¶ 5 & Ex. 2.)

On November 13, 2025, GM responded that it would produce the documents described in subdivisions (h)(12) and (h)(15) if Plaintiffs executed a stipulated protective order. GM also stated that, based on a prior communication from Plaintiffs' firm, it understood that Plaintiffs were not interested in receiving those materials. (Lara Decl., ¶ 6 & Ex. 3.) Later that day, Plaintiffs' counsel responded that Plaintiffs had not stated they were uninterested in the documents and demanded immediate production. (Lara Decl., ¶ 7 & Ex. 4.)

On January 2, 2026, GM served its statutory document production. GM identified the documents responsive to subdivision (h)(12) as its warranty policies and procedure manuals, and the documents responsive to subdivision (h)(15) as its Call Center Policies and Procedures concerning consumer complaints, refund requests, and vehicle-repurchase eligibility. GM nevertheless stated that it would not produce these materials unless Plaintiffs executed and returned a stipulated protective order. (Lara Decl., ¶ 8 & Ex. 5.)

On February 2, 2026, Plaintiffs filed and electronically served the present Motion for Compliance and Sanctions. Plaintiffs seek an order requiring compliance with Code of Civil Procedure section 871.26, subdivision (h), a \$2,500 sanction against defense attorney Ryan Kay under subdivision (j)(1), and evidentiary sanctions under subdivision (j)(4) if the Court finds repeated noncompliance. (Lara Decl., ¶¶ 9-11.)

On February 4, 2026, two days after the motion was filed, GM advised Plaintiffs that it had reevaluated its confidentiality position and would supplement its production that day. (Gale Decl., ¶¶ 5-7.) GM stated that its Call Center Policies and Procedures and Service Policies and Procedures Manuals would no longer be produced subject to a protective order, but that portions of the Service Policies concerning reimbursement and GM's relationship with dealers would remain redacted. (Gale Decl., ¶ 7 & Ex. A.) Less than ten minutes later, GM sent Plaintiffs a link to the supplemental production. (Gale Decl., ¶ 8 & Ex. B.)

GM opposed the motion on August 20, 2026, contending that the February 4 production rendered the motion moot and that confidentiality concerns supplied good cause for the initial withholding. Plaintiffs replied on August 26, 2026. The reply contends that the supplemental production remains incomplete because approximately 40 pages were redacted and no privilege log was provided.

No declaration or copy of the supplemental production accompanies the reply to substantiate the asserted page count. GM's own declaration, however, establishes that some portions of the Service Policies were intentionally redacted.

II. Preliminary Matters

A. Scope of the Motion

Although the notice of motion broadly asks GM to produce all documents mandated by Code of Civil Procedure section 871.26, subdivision (h), the motion papers are internally inconsistent as to the particular categories allegedly missing. The memorandum's introduction refers to subdivisions (h)(5), (11), (14), and (16). The memorandum's procedural discussion, Lara declaration, attached correspondence, GM's opposition, Gale declaration, and Plaintiffs' reply instead identify the dispute as concerning subdivisions (h)(12) and (h)(15).

The Court will resolve the dispute actually supported by the motion record: warranty policies and procedure manuals under subdivision (h)(12), and the manufacturer's written policies and procedures used to evaluate presuit Lemon Law restitution or replacement requests under subdivision (h)(15). GM itself identified documents responsive to both categories in its January 2 production, so there is no present dispute that subdivision (h)(15) was triggered. The Complaint also alleges a presuit repurchase process. (Compl., ¶ 14.)

To the extent Plaintiffs seek an order concerning subdivisions (h)(5), (11), (14), or (16), the request is denied without prejudice because the moving declaration and briefing do not identify what documents in those categories remain missing or otherwise establish noncompliance as to those categories.

B. Meet and Confer Requirement

Code of Civil Procedure section 871.26 does not include a prefiling meet-and-confer requirement for enforcement of the automatic disclosures. In any event, the record shows that Plaintiffs raised the disputed subdivisions in writing on November 10, 2025; GM responded on November 13; and Plaintiffs responded the same day by expressly demanding production. (Lara Decl., ¶¶ 5-7 & Exs. 2-4.) GM's contention that Plaintiffs remained silent until filing the motion is therefore not supported by the correspondence attached to the motion, although Plaintiffs do not appear to have separately responded after GM served its January 2 production.

III. Discussion

A. Legal Standard: Mandatory Disclosures Under Code of Civil Procedure Section 871.26

Code of Civil Procedure section 871.26 establishes an automatic disclosure procedure for represented parties in covered motor-vehicle restitution or replacement actions. Within 60 days after the filing of the answer or other responsive pleading, all parties must provide the required initial disclosures and documents to every other party without awaiting a discovery request. (Code Civ. Proc., § 871.26, subds. (a), (b), (k), (l).)

As relevant here, the manufacturer must provide "[w]arranty policies and procedure manuals." (Code Civ. Proc., § 871.26, subd. (h)(12).) If a presuit restitution or replacement request was made, the manufacturer must also provide "the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims." (*Id.*, subd. (h)(15).)

The statute provides a specific sanctions scheme. Unless the noncomplying party shows good cause, the court “shall” impose a \$2,500 sanction against the defense attorney, payable within 15 business days, for failure to comply with the document-production requirements in subdivision (b). (Code Civ. Proc., § 871.26, subd. (j)(1).) For a manufacturer’s or defendant’s “repeated noncompliance” with subdivision (b), (c), or (d), the court must impose specified evidentiary sanctions. (*Id.*, subd. (j)(4).)

GM cites *Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1259-1260, which explains that ordinary discovery sanctions are remedial rather than punitive and should be tailored to the harm caused. This general principle does not eliminate the fixed sanction the Legislature expressly made mandatory under section 871.26, subdivision (j)(1), when noncompliance occurs and good cause is not shown. It is more directly relevant to the Court’s consideration of the enhanced evidentiary sanction sought under subdivision (j)(4).

B. GM Did Not Timely Comply with Subdivisions (h)(12) and (h)(15), Although Its February 4 Production Narrows the Remaining Prospective Relief

1. The statutory deadline expired on January 4, 2026

GM filed its Answer on November 5, 2025. The 60-day period prescribed by Code of Civil Procedure section 871.26, subdivision (b), therefore expired on January 4, 2026. GM served a statutory production on January 2, 2026, within the 60-day period, but that production expressly withheld the documents GM itself identified as responsive to subdivisions (h)(12) and (h)(15). (Lara Decl., ¶ 8 & Ex. 5.)

Section 871.26, subdivision (b), requires the parties to “provide” the documents required by subdivision (h). Identifying responsive documents while expressly declining to produce them does not satisfy that obligation. GM therefore had not fully complied by the statutory deadline.

2. The February 4 supplemental production moots only the need for duplicative production

GM has presented competent evidence that it supplemented its production on February 4, 2026. Gale declares that GM sent Plaintiffs a link to its supplemental statutory production, and the attached email confirms that GM had decided to stop requiring a protective order for most of the disputed materials. (Gale Decl., ¶¶ 5-8 & Exs. A-B.) That later production narrows the prospective relief: the Court need not order GM to reproduce materials that were actually produced on February 4.

The later production does not, however, establish timely compliance with the January 4 deadline and therefore does not moot the sanctions issue. Nor does GM establish that the supplemental production was entirely unredacted. Gale expressly states that information in the Service Policies dealing only with GM’s relationship with dealers would be produced in redacted form. (Gale Decl., ¶ 7.)

3. Any remaining redactions should be evaluated by the statutory categories, not by the unsupported page count asserted in reply

Plaintiffs assert in reply that the February 4 production contains 40 fully redacted pages. This assertion is not supported by a declaration or by the supplemental production itself, and the Court does not rely on the page count. The Court may nevertheless address the admitted redactions because GM's own evidence establishes that it intentionally withheld portions of the Service Policies.

Subdivision (h)(12) requires warranty policies and procedure manuals without an express confidentiality exception or a "reasonably related" limitation. Subdivision (h)(15), when triggered, requires the manufacturer's written policies and procedures used to evaluate Lemon Law restitution or replacement requests. Accordingly, if the reimbursement portions GM redacted fall within either statutory category, confidentiality alone does not make them nonresponsive and GM should produce them. If those portions deal only with matters outside the warranty policies and procedures described in subdivision (h)(12) and outside the Lemon Law evaluation policies described in subdivision (h)(15), section 871.26 does not require their production.

The Court therefore orders GM to produce, without confidentiality-based redactions, any portions of the February 4 materials that fall within subdivisions (h)(12) or (h)(15) and which have not already been produced. No duplicative production is required, and the order should not be read to compel material falling outside those categories.

4. Plaintiffs' privilege-log argument does not establish a separate violation

Plaintiffs argue in reply that GM violated Code of Civil Procedure section 2031.240, subdivision (c)(1), by failing to provide a privilege log for the redacted material. That provision concerns objections based on privilege or attorney work product in responses to demands for inspection. GM does not contend that the admitted redactions were made on attorney-client or work-product grounds; its stated basis is confidentiality and the asserted lack of relevance of dealer-reimbursement material. The controlling question here is therefore whether the redacted material falls within section 871.26, subdivisions (h)(12) or (h)(15), not whether GM supplied a privilege log under section 2031.240.

C. GM Has Not Shown Good Cause Excusing the Initial Noncompliance

GM contends it had good cause because it believed the disputed materials were proprietary and confidential and believed Plaintiffs did not want them. The record does not support the latter premise after November 13, 2025. Plaintiffs expressly advised GM that they had not disclaimed interest in the materials and demanded immediate production. (Lara Decl., ¶ 7 & Ex. 4.) GM nevertheless continued to condition production on execution of a stipulated protective order in its January 2 statutory disclosure. (Lara Decl., ¶ 8 & Ex. 5.)

GM's confidentiality showing is also limited. Gale states that GM considered the materials proprietary and confidential, but provides no facts describing the confidential information, the

harm from disclosure, or why complete statutory production could not occur within the 60-day period. Indeed, two days after Plaintiffs filed this motion, GM revised its position and produced most of the materials without a protective order. (Gale Decl., ¶¶ 5-8.)

To the extent GM's position is understood as invoking trade-secret protection, *Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1144-1145 recognizes that trade-secret protection requires an evidentiary showing identifying the claimed trade secret and supporting the claim of protection. GM has not made that type of showing here. The Court need not decide that confidentiality concerns can never constitute good cause under section 871.26; it is enough to conclude that GM has not established good cause on this record for expressly withholding the required categories through the statutory deadline.

D. Sanctions

Because GM failed to comply fully with the document-production requirement in Code of Civil Procedure section 871.26, subdivision (b), and has not shown good cause, the \$2,500 sanction prescribed by subdivision (j)(1) is mandatory. Plaintiffs specifically requested the sanction against Ryan Kay, whose signature appears on GM's January 2 statutory production. The Court imposes \$2,500 in monetary sanctions against defense attorney Ryan Kay, payable to Plaintiffs' counsel within 15 business days.

E. Evidentiary Sanctions for Repeated Noncompliance Are Not Warranted on the Present Record

Plaintiffs also request the evidentiary sanctions specified in Code of Civil Procedure section 871.26, subdivision (j)(4). Those sanctions apply to a manufacturer's or defendant's "repeated noncompliance" with subdivision (b), (c), or (d).

The present record establishes an initial failure to complete the required subdivision (b) production by the statutory deadline and a subsequent production concerning the same disputed categories. Although GM admits that portions of the supplemental production remained redacted, the record does not establish a distinct second failure to comply with subdivision (b), (c), or (d), a prior order of compliance that GM disobeyed, or another separate statutory violation. Treating every continuation of the same disclosure dispute as "repeated noncompliance" would collapse the distinction the statute draws between the first fixed monetary sanction in subdivision (j)(1) and the enhanced sanction for repeated conduct in subdivision (j)(4).

The evidentiary-sanctions request is therefore denied without prejudice. If GM fails to comply with the order entered on this motion or separately violates subdivision (b), (c), or (d), the issue of repeated noncompliance can be addressed on an appropriate record.